

Senate File 471

S-3045

1 Amend Senate File 471 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 578A.3, subsection 2, Code 2025, is
5 amended to read as follows:

6 2. An occupant shall not use a leased space for residential
7 purposes. An occupant who uses a leased space for residential
8 purposes is immediately in default and the operator may limit
9 the occupant's access to the leased space to the hours which
10 the office is open at the self-service storage facility and
11 proceed in accordance with this chapter.

12 Sec. 2. Section 578A.6, Code 2025, is amended to read as
13 follows:

14 **578A.6 ~~Right~~ Rental agreement — right to deny access due to**
15 **default.**

16 1. A rental agreement may be a written or oral agreement.
17 If a written rental agreement is presented to a potential
18 occupant by an operator and if the potential occupant takes
19 possession of a leased space, or if an existing occupant
20 retains possession of the leased space, a failure by the
21 occupant to execute and deliver the written rental agreement
22 to the operator within thirty days from the initial or renewed
23 date of occupancy constitutes acceptance of the terms of the
24 written rental agreement.

25 2. If the occupant is in default or if the operator does
26 not renew the occupant's rental agreement, the operator shall
27 have deliver to the occupant a written notice or an electronic
28 mail notice, if consented to by the parties in accordance with
29 section 578A.5, subsection 5, to remove personal property from
30 the leased space within fifteen days. During the fifteen-day
31 period, the operator has the right to place reasonable
32 restrictions on the occupant's use of the leased space,
33 including the right to deny or limit the ~~occupant~~ occupant's
34 access to the leased space to the hours which the office is
35 open at the self-service storage facility if such right is set

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(amending this SF 471 to CONFORM to HF 640)

1 forth in the rental agreement.

2 3. Any personal property remaining is subject to lien
3 as provided in section 578A.5 and in accordance with section
4 578A.7.>

SCOTT WEBSTER